

How to Withdraw an Offer to Settle

Instructions

A **Withdrawal of Offer to Settle (Form F23.02A)** is a document that you can fill out if you want to withdraw certain terms or all of the terms in your Offer to Settle.

Completing Your Withdrawal of Offer to Settle

You can fill out this form by hand or you can download and fill out this form electronically at <https://www.court.nl.ca/supreme/rules-practice-notes-and-forms/family/general/> (If you fill out the form electronically, you must still print the form and give a copy to the other person).

To complete a Withdrawal of Offer to Settle, make sure to fill out the sections of the form that apply to you. If you need more space to fill out any section of this Withdrawal of Offer to Settle, attach an extra page and indicate which section is continued on the extra page.

After You Have Completed Your Withdrawal of Offer to Settle

DO NOT file your Withdrawal of Offer to Settle with the Court.

DO NOT disclose any information about the Withdrawal of Offer to Settle to the Court.

You can only tell the Court that you withdrew your Offer to Settle **AFTER** the judge has made a decision on all the issues in dispute (except costs).

Serving Your Withdrawal of Offer to Settle

You will need to give the completed and signed Withdrawal of Offer to Settle to the other person. You do not have to formally serve the Withdrawal of Offer to Settle. Remember to make a copy of the Withdrawal of Offer to Settle for yourself.

Remaining Offer Terms

If your Withdrawal of Offer to Settle only partially withdraws your offer, the other person can respond to the remaining offer terms with an **Acceptance of Offer (Form F23.05A)** or they can refuse your offer.

More Information

Questions? Go to <https://www.court.nl.ca/supreme/family-division/> or contact a Court near you:

Corner Brook: (709) 637-2227

Gander: (709) 256-1115

Grand Bank: (709) 832-1720

Grand Falls-Windsor: (709) 292-4260

Happy Valley-Goose Bay: (709) 896-7892

St. John's: (709) 729-2258

--- It is highly recommended that you get advice from a lawyer ---

If you need help finding or getting a lawyer, you can get more information from:

Public Legal Information Association of NL (PLIAN): www.publiclegalinfo.com or 1 (888) 660-7788

Legal Aid: www.legalaid.nl.ca or 1(800) 563-9911

--- REMOVE THIS PAGE BEFORE SENDING THE WITHDRAWAL ---

How to Respond to a Withdrawal of Offer to Settle

Instructions

The Offer to Settle that you received from the other person has been withdrawn.

DO NOT file any forms related to the Offer to Settle or Withdrawal with the Court.
DO NOT disclose any information about the Offer to Settle or Withdrawal to the Court.

Read the attached **Withdrawal of Offer to Settle (Form F23.02A)** carefully.

You may find that only some of the terms of Offer to Settle were withdrawn, while others are still open for you to accept or refuse. The time limits of the Offer to Settle may still apply.

If you want to accept the remaining terms of the offer (if applicable), you can send the other person an **Acceptance of Offer (Form F23.05A)**.

You may also make your own Offer to Settle, using the **Offer to Settle form (Form F23.01A)**. Please see the instructions on the form for more information on how to make an Offer to Settle. You can get the Offer to Settle form at any Supreme Court location or online: www.court.nl.ca/supreme/family/forms.html

More Information

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Form F23.02A: Withdrawal of Offer to Settle (Family Law)



**In the Supreme Court of
Newfoundland and Labrador
(General/Family)**

FOR COURT USE ONLY

COURT FILE NO: _____

CENTRAL DIVORCE REGISTRY NO: _____

Filed at _____, Newfoundland and
Labrador, this _____ day of _____, 20_____.

Registry Clerk of the Supreme Court of Newfoundland and Labrador

BETWEEN: _____ APPLICANT
(Print full name)

AND: _____ RESPONDENT
(Print full name)

AND: _____
(Print full name)

☐ NOT APPLICABLE
☐ SECOND APPLICANT
☐ SECOND RESPONDENT

I, _____ the ☐ Applicant ☐ Respondent ☐ Other:
(Print your name)

withdraw my Offer to Settle, dated _____ in relation to the following:
(Date: month/day/year)

Where you wish to withdraw the Offer to Settle in its ENTIRETY, please check the following section:

☐ **All terms and issues**

Where you wish to withdraw ONE OR MORE OF THE TERMS of the Offer to Settle, please indicate which terms you withdraw below:

☐ **Parenting (Decision-making and Parenting time)**

List the term(s) of the Offer to Settle that you are withdrawing:

☐ **Contact Order/ Third Party Time with Child**

List the term(s) of the Offer to Settle that you are withdrawing:

☐ **Child Support**

List the term(s) of the Offer to Settle that you are withdrawing:

☐ **Spousal, Partner, Parental, or Dependent Support**

List the term(s) of the Offer to Settle that you are withdrawing:

☐ **Division of (Matrimonial or Common Law) Property**

List the term(s) of the Offer to Settle that you are withdrawing:

☐ **Other Offers**

List the term(s) of the Offer to Settle that you are withdrawing:

DATED at _____, this _____ day of _____, 20____.	
_____ <i>Signature</i>	_____ <i>Signature of Lawyer (if any)</i>

--- DO NOT FILE THIS WITHDRAWAL WITH THE COURT ---
--- DO NOT DISCLOSE THIS WITHDRAWAL TO THE COURT UNTIL ALL ISSUES IN THE
OFFER (other than costs) HAVE BEEN RESOLVED ---